

THE MEINHARDT INITIATIVE

Interregnum Nullificans

Statement of Record: the 2006 submission, the 2008–09 undertakings, and the absence of a determination

A synopsis of a chain of custody: fiduciary care, the duty to reason, and a Ministerial commitment unperformed. Revised Submission — Corrected Institutional Record: October 2026

VERSION	20e · October 16th, 2026
REFERENCES	OMB-260331-CSD014 · PAC S-2026-0307 · DETE-MBURK-02755-2026
REPOSITORY	dr-bosch.github.io/nullification-loops
COMPANIONS	*Tairiscint Mheinhart* (the Saisine) *The Gatekeeping Problem* (policy paper) *Qualifying Submissions Bill* (pre-published)

TRANSMITTED TO

Office of the Ombudsman (Ombudsman Act 1980, s.7 production sought; OMB-260331-CSD014)
European Parliament Committee on Petitions (PETI, Article 227 TFEU, informally filed March 2026)
DG Competitiveness and Trade (October 15th, 2026), General Secretariat of the Council (notified April 22nd, 2026)
Office of the European Ombudsman (Article 228 TFEU; tbd)

STATUS

This is the statement of record. It contains dated events, channels, acknowledgements and actors; no argument. Where an earlier version described the Department of Foreign Affairs (DFA) as a designated or former competent authority, or described a transfer of designation on August 22nd, 2024, that description is withdrawn. The corrected allocation is in Part III.

PREAMBLE

Seneca warned that life runs on while we wait for it to begin —*dum differtur, vita transcurrit*. A system can observe the same drift. It can answer a letter, open a file, forward a question, and in each of these be in motion, without ever arriving anywhere; duty, on the older account, is discharged not by the form of a handover but by what the receiving hand then does with it. What the record shows is how long a succession of small, individually defensible silences can be made to last, and how little any one of them costs the body that lets it stand. The remedy sought is not a finding against any person; it is the ordinary administrative act —a reasoned determination— that has not yet been made.

IN BRIEF

> *In May 2006, about 26Kg of Operations Research work was presented to Irish State authorities. In 2009, an Irish Aid officer undertook in writing to report on it, and the then Minister said he would follow up. No report is recorded as produced.*
>
> *Since then, no body has issued a reasoned decision on the status of the material. The missing item is a determination, not a licence.*

GUIDANCE NOTE

Part I summarises the record in five points. Part III sets out who holds which function. Parts IV to VII give the dated events, channel by channel. Parts VIII to X state the material, the DETE request and the asks. Part XI lists the pathways. Annex A is the notice register, with office-holders at each date.

CONTENTS

Part I	Summary	4
Part II	What this record does not claim	4
Part III	Who holds what	5
Part IV	The 2008–09 undertakings	8
Part V	The OEP sequence and the closure of 4 February 2026	9
Part VI	Architecture and the policy moment	10
Part VII	Parliamentary channels	11
Part VIII	The material	12
Part IX	The DETE request	12
Part X	The asks	13
Part XI	Pathways	13
ANNEX A	Notice register	16

SECTION I

Summary

This is a record of dated events. It does not allege bad faith by any person.

1. In May 2006 a body of Operations Research work, about 26Kg of printed material, was presented to Irish State authorities. First and second on notice were the Department of Defence and the Department of the Taoiseach, along with An Garda Síochána and a number of civil liberty organisations, academic institutions and NGOs. It reached the DFA and Irish Aid from September 2008, with the Irish Aid presentation following in February 2009.
2. In January and February 2009 an Irish Aid officer undertook in writing to report on the presentation to the Minister's office and his superiors. In September 2009 the then Minister said he would follow up on the material. No report is recorded as produced.
3. Since then no body has issued a reasoned decision on the status of the material: whether it is controlled under the dual-use rules, where it is held, or what became of the 2009 undertakings. The missing item is a determination, not a licence.
4. The functions a dual-use determination needs are held by three departments, and no statute assembles them. The Control of Exports Act 2023 commenced on August 22nd, 2024 and restated the basis of the competent authority. The record identifies no audit of unresolved matters at that point.
5. Where bodies did reply, the replies closed the matter without addressing it: a Department of Defence letter relying on a body with no function under the Regulation, a committee decision citing no rule, a Secretariat refusal.

Dated anchors, as of October 12th, 2026. Since May 2006: twenty years and five months. Since February 5th, 2009, the Irish Aid presentation: seventeen years and eight months. Since September 25th, 2009, the Ministerial meeting: seventeen years.

> *Three undertakings were given across those seventeen years. Not one has been kept, and not one has been formally withdrawn. A record can sit in that condition indefinitely. The question this document puts to its readers is whether it should.*

SECTION II

What this record does not claim

- **Not that the material is controlled.** Regulation (EU) 2021/821 attaches duties to transactions —export, brokering, technical assistance— or to a Member State's own decision under Art. 9(1). It does not by itself impose a duty to evaluate an unsolicited domestic submission. General O.R. methods (vehicle routing, stochastic programming, queueing theory) are probably outside control as generally available published material, though the question is put to the competent authority in Part IX rather than answered here.
- **Not that the work would have changed any emergency.** The OEP's message of January 24th, 2025, and its letter of June 1st, 2025, are cited for what the later letter did not address. No causal claim is made.
- **Not fault or knowledge of any named individual.** The record gives dates, channels, acknowledgements and actors.

- **Not that the EU Presidency creates a legal duty.** It is a timing context.
- **Not an enforceable promise.** The 2009 undertakings are recorded as made. Their legal effect is not asserted until the contemporaneous record is in hand.

SECTION III

Who holds what

Function	Institution	Formulation
National Competent Authority; licensing; formal determinations	DETE	Department of Enterprise, Tourism and Employment; the 2023 Act was enacted under Enterprise, Trade and Employment. Control of Exports Act 2023, s.3; functions delegated to a Minister of State by S.I. 241/2025.
Consultation input on dual-use and military applications; regime memberships	DFA	Foreign policy, sanctions, human rights; Wassenaar, NSG, MTCR, Australia Group. A normative and advisory function related to the competent authority. Not the licensing authority.
Security assessment architecture; emergency planning	Defence	Including the OEP. No competent authority designation at any material time.
Coordination layer, proposed	Taoiseach	See Part III(A).

Three obligations, kept separate

Obligation	Trigger	Status
Regulatory consultation	An application to the licensing authority	Conditional. Not shown to have been engaged 2008–2026. The first application-type step on record is the request of 10 September 2026.
Administrative undertaking	DFA officers and the Minister accepted responsibility to review and report, 2009	Potentially independent of any application. Depends on what was actually promised — Part IV.
Statutory competent authority functions	Regulation (EU) 2021/821; Control of Exports Act 2023	DETE holds them.

August 22nd, 2024. The 2023 Act commenced and restated DETE's statutory basis. The record identifies no audit of unresolved matters on commencement —the absence of an identified mechanism, not a proven omission.

III(A). The Taoiseach's office, 2006–2026

What the Constitution provides. The President appoints the other members of the Government on the nomination of the Taoiseach with the previous approval of the Dáil (Art. 13.1.2°). The Taoiseach nominates the Tánaiste (28.6.1°). A member may resign to the Taoiseach, and the Taoiseach may at any time, "for reasons which to him seem sufficient," request a member's resignation; if the member does not comply the President terminates the appointment if the Taoiseach so advises (28.9.2°–4°).

If the Taoiseach resigns, the other members are deemed to have resigned and carry on their duties until their successors are appointed (28.11.1°). The Government is responsible to the Dáil (28.4.1°) and collectively responsible for the Departments of State (28.4.2°).

Two limits. The Taoiseach holds office by the support of a Dáil majority (28.10). And a statutory function sits with the office-holder the statute names: the licensing function sits with the Minister for Enterprise, Tourism and Employment, delegated to a Minister of State (S.I. 241/2025). The Taoiseach does not hold that decision.

What the office holds is *the means by which the Government is composed and, between its Departments, convened* —which is why the Department of the Taoiseach appears in Part III as the proposed coordination layer, and nowhere as the licensing authority.

The rotation

Eight tenures of the office since 2006, held by six people:

Taoiseach	Tenure
Bertie Ahern	to May 6th, 2008
Brian Cowen	May 7th, 2008, to March 9th, 2011
Enda Kenny	March 9th, 2011, to June 14th, 2017
Leo Varadkar	June 14th, 2017, to June 27th, 2020
Micheál Martin	June 27th, 2020, to Dec. 17th, 2022
Leo Varadkar	Dec. 11th, 2022, to April 9th, 2024
Simon Harris	April 9th, 2024, to Jan. 23rd, 2025
Micheál Martin	Jan. 23rd, 2025 to date

The present Taoiseach and all five previous Taoisigh were explicitly briefed —Mr Kenny, Mr Martin and Mr Harris were informed in advance of taking office.

Mr Martin was Minister for Foreign Affairs from May 2008 to March 9th, 2011, when Mr Gilmore became Minister for Foreign Affairs and Trade. No audit of the 2009 undertakings on that change is recorded. Mr Martin was later Taoiseach (2020–22), Tánaiste with Foreign Affairs and Defence (December 2022 to January 2025), and Taoiseach again from January 23rd, 2025.

> *The contradiction that this sequence produces is to be questioned and explored.*
>
> *The question of individual liability, including joint and several liability in tort for knowing contribution, is reserved, and the DFA internal file is the document that will bear on it. The matters below are set out at the level of the institutions.*

Mr Harris was Taoiseach from April 2024 to January 2025, then Tánaiste with Foreign Affairs and Trade and Defence until November 18th, 2025, when Ms McEntee took both portfolios, and Tánaiste and Minister for Finance since.

What the register shows

From Taoiseach to Tánaiste and back to Taoiseach, Mr Martin saw ostensibly the same portfolio from the vantage point of three capacities. For instance, in referencing every date in Annex A from June 19th, 2024, he held either the Taoiseach's office or the Tánaiste's office with the Foreign Affairs and Defence portfolios.

The Government was reconstituted on the Taoiseach's resignation in December 2022, April 2024 and January 2025 (28.11.1°). The record identifies no handover of the unresolved matter at any of them. Under the continuity of function, a change of officeholder or of Government does not by itself extinguish an obligation that was already before the office. Whether the 2009 undertakings are such an obligation is the question the record puts in Part X.

For context and continuity: the record shows contact with Mr Simon Coveney from 2009 —including in-person meetings— and further correspondence during his tenures as Minister for Foreign Affairs and Defence (2017–2020 and 2022–2023). Also, confirmations of intake by then-Taoiseach Brian Cowen, most notably as he transitioned into Minister for Foreign Affairs and therefore assumed a dual portfolio on the matter. This pattern of foreknowledge also occurred when Mr Simon Harris became Taoiseach, as he was previously briefed during his tenure as Minister for Health (also see correspondence with Dr Paul Connors, HSE Director of Communications).

Mr Martin has had multiple turns at the post of Tánaiste, so the portfolio can only be assumed to be familiar to him. Summaries of summaries were made. When he passed the portfolio to Mr Harris, that became Mr Harris' third turn; acknowledgements were made.

> *Six people, eight tenures, one portfolio. The office changes hands; the material does not evaporate.*

SECTION IV

The 2008–09 undertakings

Date	Officer or office	What the record shows
Sep. 19th and 22nd, 2008	Minister's staff, constituency office; first email to DFA	First direct contact with DFA: materials disclosed in person on the 19th, first email on the 22nd (Email #1).
Jan. 29th, 2009	Deputy Director, Emergency and Recovery Section, Irish Aid	Written reply: "I look forward in due course to your presentation in person and will provide a full report of our discussion to the Minister's Office and to my superiors in this organisation."
Feb. 5th, 2009	Irish Aid, Limerick	A 4.5-hour technical presentation.
Feb. 2009 to June 2009	Minister's private secretary	Telephone contact reiterating that a report would be made. No call log survives. Contemporaneous paper: an email of June 26th, 2009, copied to him and others, said the petitioner was still awaiting the report; no correction is on record.
May 21st, 2009 to Feb. 11th, 2011	DFA offices	Requests for access to the report: May 21st, 2009 (#19, first), June 5th, 2009 (#21), Sep. 17th, 2009 (#38), Nov. 20th, 2009 (#51), June 1st, 2010 (#54), June 23rd, 2010 (#55), Feb. 10th, 2011 (#63) — see Summary of Enquiry, Aug. 2024.
Sep. 25th, 2009	The then Minister for Foreign Affairs, at the petitioner's home	An email of Sep. 28th, 2009 (#40) records the meeting three days later: the Minister would follow up on the materials sent over the previous year and would call his private secretary about the backlog.

Persons who can speak to the undertakings

Mr Diarmuid O'Leary, then Deputy Director, Emergency and Recovery Section, Irish Aid: what was presented, for how long, and the report he undertook to give. Mr Aidan Cronin, then Assistant Private Secretary to the Minister: the telephone contact and how the Minister's Office handled the matter. The then Minister, Mr Micheál Martin: the meeting of September 25th, 2009. The DFA file, reachable under s.7, is the first source on what was done; these three are the people who can say what was said.

Scope

The undertaking of January 29th, 2009, is to produce a report to the Minister's office and superiors. Its value lies in what it is: specific, dated, written, and capable of a plain answer —produce the report, or record why none was

made. The answer should be in the DFA internal file, reachable by Ombudsman Act 1980 s.7, FOI Act 2014 s.11, and a data subject access request.

> *A junior officer kept his word in writing before the meeting took place. The Minister's Assistant Personal Secretary, confirms the undertaking on behalf of the Minister's office. Thekept his word in person, three weeks after the meeting ended. Between the two undertakings sits the report neither produced.*

SECTION V

The OEP sequence and the closure of 4 February 2026

Date	Officer	Position
May 2006	Mr Rooney, OEP	The OEP was not the first point of contact on the subject of emergency logistics. No other body identified.
3 Jul 2009	Mr Kelliher, OEP	"Areas highlighted do not fall within the coordination remit of the Office of Emergency Planning." No account of why.
1 Jun 2025	Mr McMoreland, OEP	O.R. methods already in use across many sectors. Stochastic programming cited.

The petitioner's rebuttal of June 3rd, 2025, contested the 2025 conclusion. It was not answered. On February 4th, 2026, the Department of Defence closed its file (DOD-MO-01201-2025, answering correspondence of December 15th, 2025 and January 12th, 2026), citing the OEP's letter of June 1st, 2025. The DOD decision letter mentions neither the rebuttal nor the extended history of the involvement of the DFA.

Three points follow.

1. **Authority.** Neither the OEP nor the Department of Defence holds a competent authority function under Regulation (EU) 2021/821. A closure on that basis answers a question that belongs to DETE.
2. **Reasons.** The letter relies on a conclusion that had been formally contested and not defended. *Meadows v Minister for Justice* [2010] 2 IR 701 concerns adequacy of reasons.
3. **Consistency.** The 2006 and 2009 positions, judgement outside remit, and the 2025 position: the methods in use and the analytical capabilities are not reconciled. The OEP's own message of January 24th, 2025, said it was "a little swamped at the minute with the severe weather response." Its adequacy letter followed four months later, glossing over the irony. The challenge to the Office's position was never addressed.

Status. Three months under Order 84 rule 21 ran from February 4th, 2026, and expired on May 4th, 2026. The Ombudsman complaint, filed March 30th, 2026, was lodged within that period. Any High Court application would need an extension. Reserved.

> *The office that said in January it was too stretched to cope found, in June, that existing methods had coped all along. Both statements are on the same file. Neither answers the other.*

SECTION VI

Architecture and the policy moment

A dual-use determination draws on technical, end-use, foreign-policy, human-rights and security inputs. Those inputs sit in DETE, DFA and Defence. The function is delegated to a Minister of State (S.I. 241/2025). No statute requires the three to coordinate.

Implied coordination

Where a statute places a function in one officer but its discharge needs inputs the officer cannot reach, the delegating authority must supply the means. The argument rests on the delegation and the structure of the function. It does not rely on Art. 23(2) of the Regulation, which concerns cooperation between Member States, nor on Art. 12(5) for any clock.

EU Commission

The Art. 26(4) evaluation window runs from September 10th, 2026 to September 10th, 2028. The open public consultation closed on October 15th, 2026 (23:59 CEST); a submission referencing this record was made.

The Commission's January 2024 White Paper (COM(2024) 25) addresses coordination and consistency in implementation. The evaluation asks, among other things, whether the Regulation has supported research and innovation. The record's point under that question is narrow: a researcher in Ireland has no route to a non-transactional classification.

National Strategic Risk Assessment 2026

On October 9th, 2026 the complainant submitted a response to the public consultation for the National Strategic Risk Assessment 2026, Department of the Taoiseach. The submission identified, as the principal cross-cutting strategic risk, the State's insufficient integrated analytical and decision-support capability, and documented thirteen reference-numbered departmental acknowledgements since June 2024, none of which produced a determination. The NSRA is a statutory risk assessment process; its principal proposed risk is the same condition this record documents at the regulatory and administrative level, now placed before the Department of the Taoiseach in the form of a risk identification. The submission is the complainant's own and is cited here as evidence of that placement.

AI Act comparator

The Regulation of Artificial Intelligence Act 2026, signed July 21st, 2026, placed the AI Office of Ireland within DETE. Operations research has no analogue, although AI and OR share much of the same mathematical foundation: optimisation, probability and statistics, control and decision theory. A State with a body to assess AI has none to assess OR, so a question about OR methods has no institutional home. This is a comparison of architecture. It is not a claim that the State evaluated the work and rejected it: the record shows non-engagement, not rejection after evaluation. The constructive proposal, an O.R. assessment capacity for public bodies, is set out in *The Gatekeeping Problem*.

Questions for the evaluation

FIRST
Across the dual-use regime in force since 2006, no determination has issued on the corpus. Is an eighteen-year absence of determination, surfacing only as the evaluation window opens, a compliance question this evaluation should examine?

SECOND
The current architecture distributes the evaluation function across three institutions with no statutory requirement that any of them coordinate. Is that distribution consistent with a Regulation that requires an integrated assessment?

THIRD
A researcher who holds no transaction, only a method that might be controlled, has no stated route to a classification. Is that gap one the evaluation was designed to find?

These are questions put to a body with the standing to answer them. The record does not answer them itself.

> *The State built an office to assess artificial intelligence and none to assess the discipline it draws its own methods from. Whatever else that is, it is not oversight.*

SECTION VII

Parliamentary channels

Body	Reference	Dates	What the record shows
JCEUA	JCEUA-I-57	First contact Sep. 8th, 2025; declination Oct. 7th, 2025; seven contacts to March 2026	Submission named ten EU-law dimensions. Declination records that the correspondence was later deleted. No reply to later contacts.
JCDNS	S-2025-0174-DEF	Sep. 19th, 2025; resubmission Nov. 26th, 2025	Declined on jurisdiction; resubmission noted in private session; no referral.
JCPP	N/A	June 10th, 2025 to Feb. 10th, 2026	Eighteen communications sent: five to the Cathaoirleach, eight to the Leas-Chathaoirleach, one to the Clerk, four to the committee address, carrying ten distinct letters. No acknowledgement of any, automated or otherwise.
Seanad Select Committee on EU Scrutiny and Transparency	SSCEUST	March 12th, 2026	Declined the same day by the Secretariat; no Standing Order cited; no committee vote. Rebuttal of 30 Apr 2026 not acknowledged.
JCFAT	S-2025-0131-FA&T	Dec. 22nd, 2025	Exclusion of a single attachment, returned.
JCFAT	S-2026-0018-FA&T	Decision July 7th, 2026; letter July 9th, 2026	The letter identifies no document, cites no Standing Order, gives no reasons. The three-month Order 84 window expired Oct. 7th, 2026; no application was made.
Clerks of the Houses	Ethics in Public Office Act 1995, s.8(3)	Sep. 10th, 2025; Feb. 24th, 2026	Simultaneous determinations by both Clerks that the complaint was frivolous or vexatious. The Clerk of Dáil replied in writing.
PAC	S-2026-0307	23 Apr 2026; 10 Aug 2026	Declined; routed to a different committee; challenge unanswered.

Senator McDowell is recorded as observing on March 3rd, 2026, that the Cabinet procedure requiring Ministers to warn each other of cross-departmental implications is not replicated between Oireachtas committees. On the record, no body in this table identified another body to which the matter should go.

> *Eight channels, one procedure each, and not one of them a destination. A committee can decline correctly and still leave a record with nowhere to go.*

SECTION VIII

The material

About 26Kg of printed material: textbooks, handbooks, booklets, and articles. The record holds three incompatible accounts of its custody: retained by a department, lost or misplaced, or sequestered. It does not establish which is correct. Possible steps to recovery would be a records request to An Garda Síochána and data access and FOI requests to DFA, Defence and the Department of the Taoiseach. Any civil claim is reserved. It depends on the custody facts and on limitation, on which advice is to be taken.

SECTION IX

The DETE request

On 10 September 2026 a request was filed with the Minister for Enterprise, Tourism and Employment (DETE-MBURK-02755-2026). An earlier acknowledgement, DETE-MBURK-01636-2026, is dated May 27th, 2026. Response status as of October 7th, 2026: the letter set a 21-day period, which ran out on October 1st, 2026.

The enacted text appears to make s.13 the competent authority's power to direct that authorisation is required for a non-Annex I item on public-security or human-rights grounds, and to attach the s.21 decision duty to notices under ss.11, 15 and 17. The record therefore puts one narrower question: are published O.R. methods and software controlled under the Regulation and the 2023 Act? Either answer is a determination. "Controlled" opens the licensing route. "Not controlled" closes the classification question and leaves the rest of this record standing: undertakings, custody, architecture.

> *Either answer would do. What the record shows is that, as of this writing, neither has come.*

SECTION X

The asks

Each can be answered yes or no by an identifiable body.

1. **Custody.** Written confirmation of where the material is and who is responsible for it. *To:* Defence, DFA, the Department of the Taoiseach; Garda records.
2. **Undertakings.** A named official to say what, if anything, was done in 2008–09 in response to the undertakings. *To:* DFA, through the Ombudsman's s.7 power.
3. **Classification.** A short written classification from DETE on published O.R. methods and software.

4. **A route for the future.** A mechanism by which a qualifying submission receives a reasoned determination: a proper Bill, such as the Qualifying Submissions Bill (pre-published; not yet before the Oireachtas), and an O.R. assessment capacity for public bodies.
5. **DFA's omitted function.** DFA: omission of the consultative and reporting functions engaged by the corpus, including the undertakings of January 29th and September 25th, 2009.

SECTION XI

Pathways

A. OMBUDSMAN — OMB-260331-CSD014

Filed March 30th, 2026; the respondent named on the portal was the Department of Defence. Section 7 production of the DFA internal file is sought. A restating letter will withdraw the description of DFA as a designated competent authority, recast Charge 7 as the omission of the 2008–09 undertakings and of DFA's consultation and advisory function, and correct the s.7 dates. It will not charge the JCFAT decision.

The eight charges, as restated

Ombudsman Act 1980, s.4(2)(b)(i)–(vii) and s.1(1)

#	Ground	Subject	Anchor
1	s.4(2)(b)(i), action without proper authority	Defence closure of 4 Feb 2026 treating an OEP letter as dispositive of a question that belongs to the licensing authority; JCEUA deletion of correspondence.	OEP and Defence hold no function under Reg. (EU) 2021/821. DETE is the National Competent Authority; DFA is a consultee.
2	(ii), irrelevant grounds	Redirection of the submission to bodies without competence under the Regulation (OEP, JCPP, JCEUA).	Seven-committee declination record, Part VII.
3	(iii), negligence or carelessness	The 2009 undertakings: written (Jan. 29th, 2009), by telephone after the presentation (recollection only), in person (Sep. 25th, 2009).	Unperformed for seventeen years from Sep. 25th, 2009. Exact words of the Sep. 25th undertaking to be confirmed (email #40).
4	(iv), erroneous or incomplete information	Defence closure: treats the OEP letter of June 2st, 2025, as unanswered although the rebuttal of June 3rd, 2025 is on record; does not mention the OEP message of Jan. 24th, 2025; does not address the 2009 position.	Part V
5	(vi), undesirable administrative practice	JCPP: eighteen sends, no acknowledgement.	Counting rule: sends, not letters, Part VII.
6	(vii), otherwise contrary to fair or sound administration	JCEUA deletion of correspondence after the declination of Oct. 7th, 2025.	Right of access to file; deletion rather than closure, deferral or referral.
7	s.1(1), failure to act, continuous	DFA: omission of the 2008–09 undertakings and of its consultation and advisory function related to the competent authority.	Needs no s.4(2)(b) ground. DFA internal file sought under s.7.

#	Ground	Subject	Anchor
8	(i) and (vi) combined	Clerk of Dáil Éireann: failure to transmit the formal complaint; reply of Feb. 24th, 2026.	Fresh act within the twelve-month Ombudsman Act window. Read by the petitioner as ratifying a determination the Clerk had not made; pleaded as his reading until the letter is exhibited.

B. HIGH COURT — ORDER 84 RSC — RESERVED

The time for the JCFAT decision of July 7th, 2026, expired on October 7th, 2026, without an application.

Prospective targets:

1. The closure of February 4th, 2026 and the Clerk's reply of February 24th, 2026. Both are out of time and would need an extension supported by a dated chronology of delay.
2. DETE, if the request of 10 September 2026 is refused or goes unanswered after a clear demand. The relief sought is consideration of the request, with reasons.
3. The Taoiseach, in mandamus, as the office in which the unperformed 2009 undertaking is now vested, under the continuity of function set out in Part III(A). A letter is to precede any application.
4. DFA, asked to account for its normative and advisory function: what views it sought or gave on dual-use applications and on this material, what the 2008–09 undertakings produced, and what mechanism links its consultation to DETE's determination —the form of relief to be posited in the *Tairiscint*.

C. EUROPEAN TRACK

- *PETI (Art. 227 TFEU):* informally filed March 2026. Admissibility unconfirmed.
- *Commission:* submission made to the public consultation on Regulation 2021/821, which ended October 15th, 2026. The Art. 26(4) window runs to September 10th, 2028. The Commission is reported to aim to finish in Q4 2026, contingent on the parallel domestic request.
- *Council:* saisine to the Council General Secretariat and COMPET notice to the outgoing Cyprus chair, both May 27th, 2026; submission to DG Competitiveness and Trade (Council Secretariat), April 22nd, 2026.
- *European Ombudsman:* jurisdiction covers Union institutions, bodies, offices and agencies. Admissibility on this record is unconfirmed, so no complaint is being pursued until scope is confirmed.
- *CJEU:* no proceedings on foot. An Art. 267 reference can be made only by a national court. The High Court may refer at its discretion under Art. 267(2); the obligation to refer under Art. 267(3) attaches only to a court of last instance, subject to the *CILFIT* exceptions.

> *Three tracks, three procedural codes, one record between them. None displaces the others; none needs to wait for the others to begin.*

Tá an taifead seo fós oscailte.

ANNEX A

Notice register

Dates, channel, office and recorded output only. The content of each acknowledgement is to be confirmed against the letter. The last two columns give the office-holders at the date, per Part III(A).

Date	Reference	Office	Recorded output	Taoiseach	FA / Defence
Nov. 18th, 2008	Letter of Mr D. King, Assistant Private Secretary, answering an email of Nov. 14th, 2008	Dept. of the Taoiseach	Acknowledgement: the email "will be brought to the Taoiseach's attention as soon as possible."	Cowen	Martin / O'Dea
Aug–Sep 2010	Letters with Dr Paul Connors, Head of Communications	HSE	Exchange of letters; no progression recorded.	Cowen	Martin / Killeen
Jan 2011	Dual-use implications flagged to the Department of the Taoiseach	Dept. of the Taoiseach	Filed.	Cowen	Cowen / Ó Cuív
Mar–Apr 2020	All 220 members of the Oireachtas and the President contacted	Oireachtas	Automated acknowledgements only.	Varadkar	Coveney / Varadkar
March 13th; July 11th, 13th, and 22nd, 2020	Automatic replies	Taoiseach's Office	The March 13th reply falls in Mr Varadkar's tenure; earlier documents place it in Mr Martin's.	Varadkar / Martin	Coveney / Varadkar
June 19th, 2024	DOT-TH-03856-2024	Dept. of the Taoiseach	Acknowledgement.	Harris	Martin
Aug. 6th, 22nd, and 23rd, 2024	FIN-MO-03632-2024	Finance	Associated with the case on 22 Aug and transferred to the Minister for Foreign Affairs on Aug. 23rd, 2024. The covering note of Aug. 20th said the matter was for Foreign Affairs first and Defence second, and asked that it go to the Tánaiste and Taoiseach —the transfer followed the sender's own request.	Harris	Martin
Aug. 23rd, 2024	DFA-TMO-05256-2024	DFA	Summary requested and provided; acknowledged; no further reply.	Harris	Martin
Sep. 4th, 2024	DOD-MO-01206-2024	Defence	Acknowledgement.	Harris	Martin
Sep. 12th, 2024	Joint letter, with the 34-page Summary of Enquiry	Taoiseach; Tánaiste; Public Expenditure	No substantive reply recorded.	Harris	Martin
Oct. 4th 2024	DOT-TH-11219-2024	Dept. of the Taoiseach	Acknowledgement.	Harris	Martin
Feb. 10th, 2025	DOT-TM25-01179-2025	Dept. of the Taoiseach	Acknowledgement.	Martin	Harris
May 16th, 2025	DOT-TM25-06516-2025	Dept. of the Taoiseach	Last direct reference from that office.	Martin	Harris
July 3rd, 2025	DOD-MO-00707-2025	Defence	Acknowledgement.	Martin	Harris
Sep. 5th, 2025	DFAT-THO-04011-2025	DFA	Acknowledgement.	Martin	Harris
Dec. 15th, 2025	DOD-MO-01201-2025	Defence	Closure letter — see Part V.	Martin	McEntee
Feb. 18th, 2026	Memorandum to Government, with Comprehensive Survey of O.R. Sub-Domains	Cabinet members	No substantive reply recorded.	Martin	McEntee

Date	Reference	Office	Recorded output	Taoiseach	FA / Defence
April 8th, 2026	TTAS-MO-01932-2026	Transport	Acknowledgement.	Martin	McEntee
May 28th, 2026	DETE-MBURK-01636-2026	DETE	Acknowledgement.	Martin	McEntee
Sep. 10th, 2026	DETE-MBURK-02755-2026	DETE	Request filed; response to confirm.	Martin	McEntee
Sep. 13th, 2026	Letter to the Secretary General, DFA, copied to the DETE and Defence Secretaries General and the Ombudsman	DFA	No reply recorded.	Martin	McEntee
Oct. 9th, 2026	Submission to the National Strategic Risk Assessment 2026 consultation	Dept. of the Taoiseach	Submitted; acknowledgement to confirm.	Martin	McEntee

SSCEUST-I-2026-074 · OMB-260331-CSD014 · PAC ref. S-2026-0307

END OF STATEMENT OF RECORD